DRAFT — to be reviewed by a licensed attorney before first use. Version 1.0-draft. Not yet in effect.

Terms of Service Privacy Policy Service Agreement

Service Agreement

Version `1.0-draft` · Effective date: [EFFECTIVE DATE] · Last updated: October 11, 2026

> **Plain-English summary.** Your Quote says what we build and what it costs. You pay 50% to start and 50% before go-live. Monthly fees start at go-live; cancel with 30 days' notice. When you have paid in full, the work made for you is yours. You are responsible for how your business uses calls and texts. We build with Claude; we are not affiliated with Anthropic.

1. Parties and how you accept

This Agreement is between Lavi Entrepreneurship & Management (Meir Lavi) (Israeli sole proprietorship (Osek Murshe)), doing business as AI Lab Pro ("we", "us"), and the business named in the Quote ("you", "Client").

You accept this Agreement when you type your full name, check the agreement box and click "Accept" on your Quote page, or when you accept an Upwork contract that refers to the Quote. Your typed name is your electronic signature. We record the date, IP address, browser, and the version of this Agreement you accepted.

Order of documents if they conflict: (1) the Quote, (2) this Agreement, (3) the Terms of Service. For work contracted through Upwork, Upwork's terms control payment, escrow and Upwork dispute handling.

2. Scope

- The scope is exactly what the Quote lists, including its "included" and "not included" sections.
- Anything not in the Quote is a change. We will send a written change quote; work starts only after you approve it.

- We do not promise business results (for example more leads, jobs or revenue).

3. Process and timeline

1. You pay the deposit.
2. You complete the setup checklist in your portal (access to your calendar, business hours, FAQ, alert contacts, SMS registration details, call forwarding). Each step has a short video.
3. Delivery time in the Quote is counted in business days **from the day the checklist is complete**.
4. We build and test, then send you a test line. You test it yourself.
5. You approve go-live and pay the final 50%. We switch the service on.
6. Handoff is by video and written notes. An optional 15-minute video call is available on request.

Delays caused by missing access, late answers or third-party approvals (for example SMS carrier registration, which can take up to several weeks) extend the timeline. Voice answering can go live before SMS registration is approved.
We reply to messages within one business day. Written quotes are sent within 1 business day of a completed questionnaire. Business days are Sunday–Thursday, Israel time.

4. Fees and payment

- All prices are fixed, in US dollars, as shown in the Quote. A Quote is valid for 14 days.
- **Setup fee:** 50% deposit before work starts; 50% before go-live. We do not offer net-30 terms.
- **Monthly fee:** starts on the go-live date, billed monthly in advance.
- **Usage:** the Quote lists the usage included each month (for example voice minutes and SMS segments). Usage above that is billed at our cost plus 20%, shown in the monthly report.
- **Taxes:** prices do not include taxes. We do not expect US sales tax, as the service is performed outside the US. On request we provide IRS Form W-8BEN.
- **Late payment:** if a payment is more than 10 days late, we may pause the service after written notice. We do not delete your data during a pause.

5. Refunds

- **30-day satisfaction guarantee** (AI Receptionist and the Receptionist + Website bundle): If you are not satisfied within 30 days after go-live, tell us in writing (email or the portal) and we will refund the setup fee you paid and switch the AI line off. Monthly fees for the period used are not refunded. This applies to the AI Receptionist and the Receptionist + Website bundle, not to the website on its own. The guarantee period starts on the go-live date recorded in your portal.
- **Setup deposit:** fully refunded on request within 7 days of payment, as long as you have not completed the setup (access) checklist. After you complete the checklist, the deposit is non-refundable, except under the satisfaction guarantee above.
- **Website (on its own):** the deposit rule above is the only setup refund, because content work starts right away.
- **Final setup payment:** non-refundable once the service is live, except under the satisfaction guarantee above.
- **Retainer plans** (Care, Growth, Studio): if you cancel within 7 days of your first retainer payment, we refund 75% of that first payment. After that, retainer fees are non-refundable.
- **Monthly service fees:** no refunds for partial months or for months already used.
- Payments made on Upwork are refunded through Upwork.

6. Term and cancellation

- Monthly services continue month to month. Either party may cancel with 30 days' written notice (email or the portal).
- We may end the Agreement right away if you seriously breach it (for example the acceptable-use rules in the Terms of Service) and do not fix it within 7 days of notice, or if the law requires it.
- After cancellation you can request a data export within 30 days (see section 12). Phone numbers we provisioned can be transferred to you where the carrier allows; carrier fees apply.

7. Your responsibilities

- Give accurate information and the access listed in the checklist.
- Review the AI's greeting, FAQ answers and booking rules before go-live, and keep them accurate (prices, hours, services, service area).
- Make sure your use of calls, texts and transcription is legal in every state where your callers are.
- Use the "Pause AI" control in your portal if anything looks wrong, and tell us.
- Do not use the service to collect protected health information, payment card numbers or Social Security numbers.
- Keep your own records. The AI receptionist is not a system of record and not an emergency service.

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8. Calls, texts and consent (SMS / TCPA)

The Missed-Call AI Receptionist works like this, and you agree to use it this way:

1. **Inbound only.** The AI answers calls that callers make to you. It does not place outbound calls with an artificial or AI voice.
2. **Text-back only after the caller's own call.** When a caller calls you and the call is missed or ends, the system may send that caller a text about their request. Texts are informational (request follow-up, booking confirmation, booking reminder). **No marketing or promotional texts** are sent through the service.
3. **Identification and opt-out.** The first text in each conversation names your business and says "Reply STOP to opt out." Default wording: `"Hi, this is [Business Name]. Sorry we missed your call. How can we help? Reply STOP to opt out."`
4. **STOP is honored right away and permanently** for that line, across all automated messages (text-back, confirmations, reminders and AI replies), until the person replies START.
5. **Quiet hours.** Messages that are not a direct reply to the caller are not sent between 9:00 p.m. and 8:00 a.m. in your time zone.
6. **Landlines.** The system checks the number type and does not text landlines.
7. **AI disclosure.** The greeting says the caller is speaking with an automated assistant. If a caller asks whether they are talking to a person, the AI answers honestly.
8. **Transcription notice.** The greeting says "This call may be transcribed." We do not record call audio. Some states require all parties to consent to recording or interception

of calls. You are responsible for deciding whether this notice is enough for your callers' states, and for any added notice or consent your attorney advises.

9. **SMS registration (A2P 10DLC).** We register your business with US carriers as your technology provider. You confirm that the business details you give us for registration are true. Registration can be rejected or delayed by carriers; this is outside our control.

You represent that: (a) you have the right to receive and respond to calls and texts at the numbers you forward to us; (b) you will not ask us to send texts to anyone who has not called you, or to send marketing texts; and (c) you will not use the service in a way that breaks the Telephone Consumer Protection Act, state telemarketing or call-recording laws, or carrier rules. We do not claim that the service makes your business compliant with any law.

9. AI limitations

The AI can misunderstand callers, give an incomplete answer, or book the wrong slot. We set rules in code to limit this (for example it never quotes prices you have not approved, never offers discounts, and sends emergencies to you and to 911). You can see every call, text and booking in your portal. We are not liable for a lost job, a wrong booking, or a caller's action based on an AI answer, beyond the limit in section 15.

10. Service level

We aim for 99% monthly availability of the AI receptionist, on a best-effort basis. This is a target, not a guarantee, and there are no service credits. If our server is down, calls go to a voicemail fallback. We monitor the service and alert ourselves to failures. Outages of phone carriers, cloud providers or AI providers are outside our control.

11. Intellectual property

- **Your materials** (logos, text, photos, data, your FAQ answers) stay yours. You give us a license to use them only to provide the services.
- **Client deliverables.** When you have paid all setup fees in full, you own the work made specifically for you: your website content and design files, your written copy, your AI

receptionist's configuration (greeting, FAQ, booking rules), and your domain if bought in your name.

- **Our materials.** We keep ownership of our pre-existing and reusable materials: templates, shared code, the receptionist platform and runtime, prompts and prompt frameworks, tools and know-how. We grant you a non-exclusive, non-transferable license to use our materials as part of your deliverables. For hosted services (such as the AI receptionist), the license lasts while your monthly plan is active. For a website, the license to template code included in your site files is perpetual once you have paid in full.
- Before full payment, all deliverables remain ours.
- We may show non-confidential parts of the work (for example a screenshot with demo data) in our portfolio, unless you tell us not to.

12. Data and confidentiality

- We process your callers' information on your behalf, only to provide the service, as described in our Privacy Policy. We do not sell it and do not use it for our own marketing.
- Retention: call transcripts and texts 90 days; technical logs 30 days. Then they are deleted automatically.
- When the Agreement ends, you may ask for an export of your data (calls, texts within the retention period, bookings log, configuration) within 30 days. After that we delete it, except booking records (kept 2 years for accounting) and records we must keep by law.
- Each party keeps the other's non-public business information confidential and uses it only for this Agreement.
- **Health information:** we are not a HIPAA business associate and do not sign business associate agreements. Do not use the service for protected health information. Dental and other health-care offices are offered early access only, with the AI collecting only name, phone number and a general reason for the call.

13. Third-party services

The service depends on third parties (for example Twilio, Google, Calendly, Zapier, Anthropic and your CRM). Their terms apply. If a third party changes or stops a feature, we will tell you and propose a fix or a change quote. Third-party fees named in the Quote (for example SMS registration fees) are included; others are passed through at cost.

14. Warranties

We will perform the services in a professional way, consistent with the Quote. If a delivered feature does not work as the Quote describes, tell us within 30 days of go-live and we will fix it at no extra cost. This is your main remedy for defects. Otherwise, to the extent the law allows, the services are provided "as is", and we disclaim implied warranties of merchantability, fitness for a particular purpose and non-infringement.

15. Limitation of liability

To the extent the law allows: (a) each party's total liability under this Agreement is limited to the amounts you paid us in the 12 months before the event that caused the claim; and (b) neither party is liable for indirect, incidental, special, consequential or punitive damages, or for lost profits, revenue, jobs or data. These limits do not apply to your payment obligations or to your indemnity in section 16.

16. Indemnity

You will defend and hold us harmless from third-party claims (including claims by callers or regulators) that arise from your content, your instructions, the business details you gave for SMS registration, or your use of calls and texts in breach of section 8 or the law.

17. Independent contractor

We are an independent contractor, not your employee or agent. We are responsible for our own taxes. We may use AI tools and service providers to do the work; we remain responsible for the result.

18. Governing law and disputes

This Agreement is governed by the laws of **[GOVERNING LAW — proposed: the State of New York]**, without regard to conflict-of-law rules. Before any claim, the parties will try to resolve the dispute in writing for 30 days. If not resolved, it will be settled by binding arbitration conducted online by **[ARBITRATION PROVIDER]**, in English, by a single arbitrator. [ATTORNEY: confirm venue, provider and class-action waiver.]

19. Not affiliated with Anthropic

We build with Claude, an AI model by Anthropic, PBC. We are not affiliated with, endorsed by or sponsored by Anthropic.

20. General

This Agreement, the Quote and the Terms of Service are the full agreement on this subject. Changes must be in writing (email or the portal counts). If part of this Agreement is unenforceable, the rest stays in force. Neither party may assign this Agreement without the other's consent, except as part of a sale of the business with notice. Notices go to the emails in the Quote and to support@ailabpro.co.